

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 24, 2026, AT 8:30 A.M.

It thus appears defendant's third issue, after several revisions, is that plaintiff did not trip on a cord cover. Defendant does not meet its burden to establish plaintiff did not trip on a cord cover.

In sum, defendant does not meet its burden for any of the issues raised and therefore the motion for summary judgment is denied.

6. S-CV-0053111 LEROY, JOSEPH v. PICKETT, RYAN

The motion to compel discovery is dropped from calendar as no moving papers were filed with the court.

7. S-CV-0054411 PANNU, PAUL v. DANILOVA, NADEZHDA

Defendants Artur Danulov and Nadezhda Danulova's Motion to Set Aside Default

Defendants Artur Danulov and Nadezhda Danulova's unopposed motion to set aside default and default judgment is granted. (Code Civ. Proc., § 473, subd. (b).) The default entered on January 7, 2026, and default judgment entered on June 1, 2026, are set aside.

Defendants Artur Danulov and Nadezhda Danulova shall file and serve their answer on or before **October 5, 2026**.

8. S-CV-0054641 ASSAD, QASSIM v. GENERAL MOTORS

Plaintiff's Motion for Attorney Fees, Costs, and Expenses

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

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Here, plaintiff is the prevailing party because he achieved his litigation objectives and the parties stipulated to plaintiff's recovery of reasonable attorney's fees.

Defendant does not challenge this. Accordingly, the court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoice attached as Exhibit 4 to the declaration of Bryan M. Geoulla. The court observes instances where the work appears to be duplicative or unnecessary to the prosecution of the causes of action and instances where an excessive number of hours are billed for what should be relatively straight-forward tasks. The court determines that 21.5 hours are reasonable for Bryan Geoulla, 3.3 hours are reasonable for Michael Josephson, and .9 hours are reasonable for Mark Chivorchian.

The court must next address whether the requests for \$450 per hour by Bryan Geoulla, \$350 for Michael Josephson, and \$200 for Mark Chivorchian are reasonable. Determining the reasonable amount of attorneys' fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, "[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement." (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

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The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$350 per hour by Bryan Geoulla, \$300 for Michael Josephson, and \$150 per hour by Mark Chivorchian are reasonable for similar legal services within Placer County. There is insufficient evidence that plaintiff needed to hire out-of-town counsel or that out-of-town counsel rates are proper. (*Caldera v. Department of Corrections & Rehabilitation* (2020) 48 Cal.App.5th 601, 609–10.) The court declines to issue a multiplier.

Defendant also challenges \$180.35 in costs for the “other” category. “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. . . . Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Moreover, “if the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses, and services therein listed were necessarily incurred by the defendant.” (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 856.)

Here, the requested costs in the amount of \$180.35 for the “other” category is unsupported by evidence and thus not reasonably necessary to the litigation.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$8,650 for attorney’s fees and costs in the amount of \$550.85 for a total amount of \$9,200.85.

9. S-CV-0056271 PLEKHANOVA, ADELINA v. FOUR SEASONS ESTATES

Defendant Granlibakken Management Company, Ltd.’s Demurrer to Plaintiff’s Complaint

Defendant demurs to the second, third, fourth, and fifth cause of action in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the second cause of action for public nuisance, third cause of action for breach of contract, fourth cause of action for intentional infliction of emotional distress, and fifth cause of action for fraudulent concealment. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123